

M/S New Super Cold Storage And Ice Factory v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 26 May 2022 · WRIT - C No. - 14001 of 2022 · WRIT - C No. - 14001 of 2022 · **Writ disposed of without merits; petitioner given liberty to file a clause 6.5 objection within four weeks, to be decided within the next four weeks; no coercive action for eight weeks or until the objection is decided, whichever is earlier.**

HEADNOTE

A writ seeking to quash a distribution licensee's demand notice and to restore electricity supply is disposed of without examining merits. The consumer is given liberty to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005, to be decided time-bound after hearing; coercive action on the demand is stayed for eight weeks or until the objection is decided, whichever is earlier.

FACTUAL SUMMARY

The petitioner, M/s New Super Cold Storage and Ice Factory, filed a writ petition in the Allahabad High Court seeking to quash a demand notice dated 30 March 2022 issued by the Executive Engineer, Vidyut Vitran Khand-IV, Ujhani, District Budaun, and a mandamus to restore its electricity connection. Counsel for the distribution licensee stated on instructions that the petitioner could file an objection to the demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed demand — clause 6.5 objection as alternate remedy

HOLDING

Without expressing any opinion on merits, a writ against a demand notice and for restoration of supply is disposed of with liberty to the consumer to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the licensee within four weeks. If so submitted, the objection shall be decided in accordance with law within the next four weeks after reasonable opportunity of hearing. No coercive action shall be taken on the impugned demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 4-5

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ against the demand notice and for restoration of supply was disposed of without merits, relegating the consumer to a Para 6.5 objection. ¶ 4

clause-6.5-statutory-remedy-disputed-bill The Court treated an objection under Para 6.5 as the statutory remedy for the disputed demand, to be decided time-bound after hearing. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEMAND NOTICE DATED 30.03.2022

The Court expressly declined to examine the merits of the petitioner's challenge to the demand. ¶ 4

NOT DECIDED — MANDAMUS TO RESTORE THE ELECTRICITY CONNECTION

Restoration was prayed for but not granted or refused on merits; the petition was disposed of on the clause 6.5 liberty. ¶ 2,4